



DIRECTORATE-GENERAL FOR COMMUNICATION

DIRECTORATE FOR MEDIA

SPECIFICATIONS

OPEN PROCEDURE

Monitoring and analysis services of the Spanish media

Contract reference EP-COMM/2026/OP/0016

1. INTRODUCTION

These specifications are an integral part of the documents drawn up for the invitation to tender for the contract referred to. The documents relating to the invitation to tender comprise:

- the contract notice;
- a letter of invitation to tender including the conditions for submitting a tender;
- the specifications and the annexes thereto;
- and a model contract and the annexes thereto.

These specifications are supplemented by the following annexes, which are an integral part thereof:

- Annex I: Technical specifications and the annexes thereto (A to F);
- Annex II: The European Parliament's environmental policy;
- Annex III: Declaration on the tenderer's honour concerning the exclusion and the selection criteria;
- Annex IV: Financial identification form - supplier;
- Annex V: Information sheet concerning groups of economic operators;
- Annex VI: Declaration concerning subcontractors;
- Annex VII: Financial data sheet;
- Annex VIII: Declaration on the tenderer's honour concerning the restrictive measures in view of Russia's actions destabilising the situation in Ukraine

PART I – GENERAL INFORMATION

2. SUBJECT OF THE CONTRACT

In accordance with the provisions of Regulation (EU, Euratom) 2024/2509 of the European Parliament and of the Council of 23 September 2024 on the financial rules applicable to the general budget of the European Union (recast), the European Parliament has decided to issue this invitation to tender for **daily media monitoring of news in printed, online and audio-visual media and media analysis of Spanish media for the needs of the European Parliament in English.**

3. DESCRIPTION, PURPOSE AND ESTIMATED VALUE OF THE CONTRACT

The European Parliament launches this procedure aiming to award a framework contract for daily monitoring of written press (national/regional), audio-visual media (radio, TV), main online media (internet) as well as monthly media analysis in Spain.

The purpose is to provide a timely, up-to-date compendium of daily information, in the form of press reviews, about the way in which topics of relevance to the European Parliament and the European Union are reported in the media. The European Parliament's Directorate-General for Communication (DG COMM) is seeking to ensure it has the best possible knowledge of the media coverage across the EU on topics related to the European Union, the European Parliament and the activities of its President and MEPs. Media analysis will ultimately help the EP to better communicate EU policies to EU citizens and specific target audiences. In order to achieve this, the EP relies partly on external expertise and assistance.

The services will be delivered by the awarded tenderer via the global media monitoring and analysis platform of the European Parliament (hereafter EPMM) directly to the recipients.

A detailed description of the services required is provided in Annex I (Technical specifications).

The duration of the contract shall be 12 months. The contract shall be renewed tacitly on an annual basis, but its duration may not exceed four years and shall take place in accordance with the terms laid down in Article I.2 of the draft framework contract.

Performance of the contract shall not begin until the framework contract is signed.

The maximum value of the contract is EUR 350.000, all renewals included.

The split of budget between activities is:

- Media monitoring activities: EUR 280.000,
- Media analysis: EUR 70.000.

4. PARTICIPATION IN THE TENDER PROCEDURE

Participation in this invitation-to-tender procedure is open on the same terms to all natural or legal persons and public entities in a European Union Member State and to all natural and legal persons and public entities of a third country which has concluded a specific public-procurement agreement with the European Union giving them access to the contract which is the subject of this invitation to tender and on the terms laid down by that agreement.

To ascertain the eligibility of tenderers, they must indicate in their tenders the country in which they have their registered office or in which they are domiciled. They must also submit the evidence

required under their national law or other, equivalent proof enabling the European Parliament to check where they come from.

4.a COMPLIANCE WITH RESTRICTIVE MEASURES ADOPTED UNDER ARTICLE 29 OF THE TEU OR ARTICLE 215 OF THE TFEU

Tenderers must ensure that they, their subcontractors, suppliers or the entities whose capacities are relied on for the execution of the public procurement contract are not subject to restrictive measures adopted under Article 21 TEU or Article 215 TFEU.

According to Article 5k of the Regulation 833/2014 concerning restrictive measures in view of Russia's actions destabilising the situation in Ukraine, as amended by Regulation 2022/576, the award of a public or concession contract is prohibited (unless authorised by the competent authorities based on the exceptions provided in the same Article) to the following persons:

- (a) a Russian national, or a natural or legal person, entity or body established in Russia;
 - (b) a legal person, entity or body whose proprietary rights are directly or indirectly owned for more than 50 % by an entity referred to in point (a) of this paragraph; or
 - (c) a natural or legal person, entity or body acting on behalf or at the direction of an entity referred to in point (a) or (b) of this paragraph,
- including, where they account for more than 10 % of the contract value, subcontractors, suppliers or entities whose capacities are being relied on.

Article 5aa of the Regulation 833/2014 prohibits (with the exceptions provided in the same Article) direct or indirect engagement in any transaction with:

- (a) a legal person, entity or body established in Russia, which is publicly controlled or with over 50 % public ownership or in which Russia, its Government or Central Bank has the right to participate in profits or with which Russia, its Government or Central Bank has other substantial economic relationship, as listed in Annex XIX of the Regulation 833/2014;
- (b) a legal person, entity or body established outside the Union whose proprietary rights are directly or indirectly owned for more than 50 % by an entity listed in Annex XIX of the Regulation 833/2014; or
- (c) a legal person, entity or body acting on behalf or at the direction of an entity referred to in point (a) or (b) of this paragraph.

Article 5l of the Regulation 833/2014 prohibits (with the exceptions provided in the same Article) the provision of any benefit under a Union contract within the meaning of Regulation 2024/2509 to any legal person, entity or body established in Russia or a legal person entity or body whose proprietary rights are directly or indirectly owned for more than 50% by an entity established in Russia as per Article 5l(1)(b) Regulation 833/2014.

Tenders submitted by the persons or entities falling within these categories shall be rejected unless an exception to the restrictive measures is applicable.

To that effect, all tenderers must submit the declaration on the tenderer's honour set out in Annex VIII, duly dated, signed, and complemented by documents relating to the existence of an exception situation, if applicable.

The contracting authority may request supplementary explanations and (or) documentary evidence on the compliance with the restrictive measures from the tenderer at any moment of the procedure.

5. GROUPS OF ECONOMIC OPERATORS

If the tender is submitted by a group of economic operators, Annex V must be completed and included with it.

Groups of economic operators may submit a tender. The European Parliament reserves the right to require the group selected to have a given legal form if this is necessary for the proper performance of the contract. This requirement may be communicated by the European Parliament at any time during the contract award procedure, but at all events before the contract is signed.

The group of economic operators shall provide proof of its legal form by the time the contract — if awarded to it — is signed. This may take one of the following forms:

- an entity with legal personality recognised by a Member State;
- an entity without legal personality but offering sufficient protection of the European Parliament's contractual interests (depending on the Member State concerned, this may be, for example, a consortium or a temporary partnership);
- the signature by all the partners of a type of 'power of attorney' or equivalent document confirming a form of cooperation.

The group's actual status shall be established by any document or agreement signed by the members of the group, which shall be appended to the tender.

Those documents or agreements may exceptionally be modified and/or submitted after the time limit for submission of a tender, but under no circumstances after the outcome of the invitation to tender has been communicated to the tenderers concerned. The European Parliament reserves the right to reject a tender if the terms of agreements between the members of a group are modified during the procedure, if those terms make no provision for the joint and several liability of the group's members or if no agreement with legal force has been submitted with the tender.

The European Parliament may accept other legal forms not referred to above, if they ensure the parties' joint and several liability and are compatible with performance of the contract. At all events, it should be noted that, in the contract to be signed with the group, the European Parliament will refer expressly to the existence of such joint and several liability. In addition, it reserves the right to require, contractually, the appointment of an authorised representative who may represent the members and who is empowered, inter alia, to issue invoices on behalf of the other members.

Tenders from groups of economic operators must specify the role, qualifications and experience of each of the members of the group. The tender shall be submitted jointly by the economic operators, who shall also assume joint and several liability for the tender submission.

In the case of a group of economic operators, each member shall furnish proof of right of access to the contract (eligibility), as well as proof concerning compliance with the exclusion and selection criteria. Regarding the selection criteria, the European Parliament may rely on the capacity of the other members of the group in order to establish whether the tenderer will have the resources needed to perform the contract. In this case an undertaking shall be required from those members stating that they will make available to the other members the resources needed to perform the contract.

6. COUNTRY OF THE TENDERER

The tenderers must indicate in which country they are established and to present the supporting evidence normally acceptable under the law of that country.

7. SUBCONTRACTING

Subcontracting is permitted.

If the tenderer uses subcontractors, Annex VI must be completed and included with the tender.

The tender shall give details, as far as possible, of that part of the contract which the tenderer proposes to subcontract and the identity of the subcontractors. During the contract award procedure or performance of the contract the European Parliament reserves the right to require tenderers to supply information about the financial, economic, technical and professional capacity of the proposed subcontractor(s). Likewise, the European Parliament may demand the requisite proof to establish whether the subcontractors comply with the requisite exclusion criteria. Tenderers are hereby informed that proposed subcontractors may not be in one of the situations described in Articles 138 to 143 of the Financial Regulation, which entail exclusion from participation in a contract issued by the European Union.

The European Parliament shall verify whether the envisaged subcontractors, when subcontracting represents a significant part of the contract, fulfil the relevant selection criteria.

The European Parliament is entitled to reject any subcontractor who does not comply with the exclusion and/or selection criteria (see points 14. and 15. respectively).

Furthermore, the European Parliament must be informed by the Contractor of any subsequent use of subcontracting not provided for in the tender. The authorising officer responsible reserves the right to accept or reject the proposed subcontractor. To do so he may demand the requisite proof to establish whether the subcontractor(s) complies/comply with the requisite criteria. The European Parliament's authorisation will always be granted in writing.

If the contract is awarded to a tenderer who proposes a subcontractor in his tender, this equates to giving consent for the subcontracting.

8. VARIANTS

Variants are not permitted.

9. PRICES

Prices shall be revised in accordance with the terms set out in the contract.

Pursuant to Article 3 of the Protocol on the privileges and immunities of the European Union, the price quotation shall be submitted excluding VAT and other equivalent indirect taxes.

The price quoted must be all-inclusive and expressed in euros, including for countries which are not part of the euro zone. For tenderers in those countries, the amount of the tender may not be revised in line with exchange rate movements. It is for the tenderer to select an exchange rate and accept the risks or the benefits deriving from any variation.

10. FINANCIAL GUARANTEES

Not applicable.

11. ENVIRONMENTAL ASPECTS

The European Parliament's environmental policy

Tenderers shall undertake to comply with the environmental legislation in force in the field of the contract, should it be awarded to them. It should be noted in this connection that the European Parliament applies the EMAS environmental management system in accordance with Regulation (EC) No 1221/2009 of the European Parliament and of the Council of 25 November 2009. Information about EMAS is provided by the authorising department in Annex II to these specifications. The successful tenderer will be required to ensure that the information provided by the European Parliament on the EMAS programme in general, and more specifically on the implementation of environmental measures in practice, is known by all his staff working for the European Parliament. At the European Parliament's request the successful tenderer may be required to certify that anyone assigned to work under the contract has received the appropriate professional training required (technical, safety and environmental training) concerning compliance with safety rules and correct handling of the equipment and products to be used, including action to be taken in the event of incorrect handling or any other incidents.

12. POLICY ON THE PROMOTION OF EQUAL OPPORTUNITIES

Tenderers shall undertake to observe a policy on the promotion of equality and diversity in the performance of the contract, should it be awarded to them, by applying the principles of non-discrimination and equality set out in the Community Treaties in full and in their entirety. More particularly, the tenderer awarded the contract shall undertake to establish, maintain and promote an open and inclusive working environment which respects human dignity and the principles of equal opportunities, based on three main elements:

- equality between men and women;
- employment and integration of disabled persons;
- the removal of all obstacles to recruitment and all potential discrimination based on sex, race or ethnic origin, religion or convictions, disability, age or sexual orientation.

13. PERFORMANCE OF FRAMEWORK CONTRACTS

Not applicable.

PART II – EXCLUSION, SELECTION AND AWARD CRITERIA

14. EXCLUSION CRITERIA

The full texts of Articles 138 to 143 FR on exclusion criteria and their application are available in the Official Journal of the European Union, N° L 2024/2509 on 26 September 2024, pages 1 - 239.

Article 138 of the Financial Regulation (extracts): only paragraphs 1, 5, 9 and 10 are reproduced hereafter.

1. The authorising officer responsible shall exclude a person or entity referred to in Article 137 (2) from participating in award procedures governed by this Regulation or from being selected for implementing Union funds where that person or entity is in one or more of the following exclusion situations:

- a) the person or entity is bankrupt, subject to insolvency or winding up procedures, its assets are being administered by a liquidator or by a court, it is in an arrangement with creditors, its business activities are suspended, or it is in any analogous situation arising from a similar procedure provided for under Union or national law;
- b) it has been established by a final judgment or a final administrative decision that the person or entity is in breach of its obligations relating to the payment of taxes or social security contributions in accordance with the applicable law;
- c) it has been established by a final judgment or a final administrative decision that the person or entity is guilty of grave professional misconduct by having violated applicable laws or regulations or ethical standards of the profession to which the person or entity belongs, or by having engaged in any wrongful conduct which has an impact on its professional credibility where such conduct denotes wrongful intent or gross negligence, including, in particular, any of the following:
 - i) fraudulently or negligently misrepresenting information required for the verification of the absence of grounds for exclusion or the fulfilment of selection criteria or in the performance of the legal commitment
 - ii) entering into agreement with other persons or entities with the aim of distorting competition;
 - iii) violating intellectual property rights;
 - iv) unduly influencing or attempting to unduly influence the decision-making process to obtain Union funds by taking advantage, through misrepresentation, of a conflict of interests involving any financial actors or other persons referred to in Article 61(1);;
 - v) attempting to obtain confidential information that may confer upon it undue advantages in the award procedure;
 - (vi) incitement to discrimination, hatred or violence against a group of persons or a member of a group or similar activities that are contrary to the values on which the Union is founded enshrined in Article 2 TEU, where such misconduct has an impact on the person or entity's integrity which negatively affects or concretely risks affecting the performance of the legal commitment;

d) it has been established by a final judgment that the person or entity is guilty of any of the following:

i) fraud, within the meaning of Article 3 of Directive (EU) 2017/1371 of the European Parliament and of the Council and Article 1 of the Convention on the protection of the European Communities' financial interests, drawn up by the Council Act of 26 July 1995;

ii) corruption, as defined in Article 4(2) of Directive (EU) 2017/1371 or active corruption within the meaning of Article 3 of the Convention on the fight against corruption involving officials of the European Communities or officials of Member States of the European Union, drawn up by the Council Act of 26 May 1997, or conduct referred to in Article 2(1) of Council Framework Decision 2003/568/JHA, or corruption as defined in other applicable laws;

iii) conduct related to a criminal organisation, as referred to in Article 2 of Council Framework Decision 2008/841/JHA;

iv) money laundering or terrorist financing, within the meaning of Article 1(3), (4) and (5) of Directive (EU) 2015/849 of the European Parliament and of the Council;

v) terrorist offences or offences related to terrorist activities, as defined in Articles 3 to 12 of Directive (EU) 2017/541 of the European Parliament and of the Council⁵⁵, or inciting, aiding, abetting or attempting to commit such offences, as referred to in Article 14 of that Directive;

vi) child labour or other offences concerning trafficking in human beings as referred to in Article 2 of Directive 2011/36/EU of the European Parliament and of the Council;

e) the person or entity has shown significant deficiencies in complying with main obligations in the implementation of a legal commitment financed by the budget, which has

i) led to the early termination of a legal commitment;

ii) led to the application of liquidated damages or other contractual penalties; or

(iii) been discovered by an authorising officer, OLAF or the Court of Auditors, or the EPPO following checks, audits or investigations;

f) it has been established by a final judgment or final administrative decision that the person or entity has committed an irregularity within the meaning of Article 1(2) of Council Regulation (EC, Euratom) No 2988/95;

g) it has been established by a final judgment or final administrative decision that the person has created an entity under a different jurisdiction with the intent to circumvent fiscal, social or any other legal obligations, including those related to working rights, employment and labour conditions, in the jurisdiction of its registered office, central administration or principal place of business.

h) it has been established by a final judgement or final administrative decision that an entity has been created with the intent referred to in point (g).

i) the entity or person has intentionally and without proper justification resisted an investigation, check or audit carried out by an authorising officer or its representative or auditor, OLAF, the EPPO, or the Court of Auditors. It shall be considered that the person or entity resists an investigation, check or audit when it carries out actions with the goal or effect of preventing, hindering or delaying the conduct of any of the activities needed to perform the investigation, check or audit. Such actions shall include,

in particular, refusing to grant the necessary access to its premises or any other areas used for business purposes, concealing or refusing to disclose information or providing false information.

(.....)

5. The authorising officer responsible shall exclude a person or entity referred to in Article 137(2) where:

(a) a natural or legal person who is a member of the administrative, management or supervisory body of the person or entity referred to in Article 137(2), or who has powers of representation, decision or control with regard to that person or entity, is in one or more of the situations referred to in paragraph 1, points (c) to (i), of this Article;

(b) a natural or legal person that assumes unlimited liability for the debts of the person or entity referred to in Article 137(2) is in one or more of the situations referred to in paragraph 1, point (a) or (b), of this Article;

(c) a natural person who is essential for the award or for the implementation of the legal commitment is in one or more of the situations referred to in paragraph 1, points (c) to (i), of this Article.

The authorising officer responsible shall ensure that the natural person that is in one or more of the situations referred to in the first subparagraph is excluded.

(.....)

9. The authorising officer responsible, having regard, where applicable, to the recommendation of the panel referred to in Article 145, shall not exclude a person or entity referred to in Article 137(2) from participating in an award procedure or from being selected for implementing Union funds where:

(a) the person or entity has taken remedial measures as specified in paragraph 10 of this Article, to an extent that is sufficient to demonstrate its reliability. This point shall not apply in the case referred to in paragraph 1, point (d), of this Article;

(b) it is indispensable to ensure the continuity of service, for a limited duration and pending the adoption of remedial measures specified in paragraph 7 of this Article;

(c) such an exclusion would be disproportionate based on the criteria referred to in paragraph 3 of this Article.

In addition, paragraph 1, point (a), of this Article shall not apply in the case of the purchase of supplies on particularly advantageous terms from either a supplier which is definitively winding up its business activities or the liquidators in an insolvency procedure, an arrangement with creditors, or a similar procedure under Union or national law.

In the cases of non-exclusion referred to in the first and second subparagraphs of this paragraph, the authorising officer responsible shall specify the reasons for not excluding the person or entity referred to in Article 137(2) and inform the panel referred to in Article 145 of those reasons.

10. The remedial measures referred to in paragraph 9, first subparagraph, point (a), shall include, in particular:

(a) measures to identify the origin of the situations giving rise to exclusion and concrete technical, organisational and personnel measures within the relevant business or activity area of the person or

entity referred to in Article 137(2), appropriate to correct the conduct and prevent its further occurrence;

(b) proof that the person or entity referred to in Article 137(2) has undertaken measures to compensate or redress the damage or harm caused to the financial interests of the Union by the underlying facts giving rise to the exclusion situation;

(c) proof that the person or entity referred to in Article 137(2) has paid or secured the payment of any fine imposed by the competent authority or of any taxes or social security contributions referred to in paragraph 1, point (b), of this Article.

Without prejudice to the assessment of the authorising officer responsible or of the panel referred to in Article 145, the person or entity shall submit remedial measures that have been assessed by an external independent auditor or have been considered sufficient by a decision of a national or Union authority.

The tenderer is invited to complete the Annex III where the exclusion criteria are mentioned¹.

Article 143 of the Financial Regulation (extracts): only paragraph 1 of Article 143 has been reproduced.

Rejection from an award procedure

The authorising officer responsible shall reject from an award procedure a participant who:

- (a) is in an exclusion situation established in accordance with Article 138;
- (b) has misrepresented the information required as a condition for participating in the procedure or has failed to supply that information;
- (c) was previously involved in the preparation of documents used in the award procedure where this entails a breach of the principle of equality of treatment, including distortion of competition, that cannot be remedied otherwise;
- (d) has professional conflicting interests which may negatively affect the performance of the contract in accordance with point 20.6 of Annex I;
- (e) is the addressee of a decision prohibiting the award of the contract for having received foreign subsidies distorting the internal market, adopted by the Commission in accordance with paragraph 3 of this Article.

The authorising officer responsible shall communicate to the other participants in the award procedure the relevant information exchanged in the context of or resulting from the involvement of the participant in the preparation of the award procedure as referred to in the first subparagraph, point (c). Prior to any such rejection the participant shall be given the opportunity to prove that its involvement in preparing the award procedure does not breach the principle of equality of treatment.

Evaluation of the exclusion criteria

1. All tenderers must submit the declaration on the tenderer's honour, duly dated and signed, which is set out in Annex III.
2. In the case of a consortium of economic operators, the declaration on honour shall be provided by all the members of the consortium.

¹ Annex III may be replaced by the European Single Procurement Document (ESPD).

3. Before the award decision, the contracting authority will request documentary evidence on compliance on the exclusion criteria set out in the present tender specifications from the tenderer to whom the contract is to be awarded.
4. All tenderers are invited to prepare in advance the documents related to the evidence, since they may be requested to provide such evidence within five working days. Failure to provide valid documentary evidence within the deadline set by the Contracting Authority shall lead to the rejection of the tender for the award of the contract, unless the tenderer can justify the failure on the grounds of material impossibility.
5. A request for evidence in no way implies that the tenderer will be awarded the contract.
6. Whenever requested by the authorising officer responsible and where this is necessary to ensure the proper conduct of the procedure, the tenderer shall provide:
 - (a) appropriate evidence that it is not in one of the exclusion situations referred to in Article 138(1);
 - (b) information on natural or legal persons that are members of the administrative, management or supervisory body of the participant or that have powers of representation, decision or control with regard to that participant, including persons and entities within the ownership and control structure and beneficial owners, and appropriate evidence that none of those persons are in one of the exclusion situations referred to in points (c) to (f) of Article 138(1).
 - (c) appropriate evidence that natural or legal persons that assume unlimited liability for the debts of that participant are not in an exclusion situation referred to in point (a) or (b) of Article 138(1).
7. Where applicable and in accordance with national law, the authorising officer responsible may accept as appropriate evidence that a participant or an entity referred to in paragraph 6 is not in one of the exclusion situations referred to in points (a), (c), (d), (f), (g) and (h) of Article 138(1), a recent extract from the judicial record or, failing that, an equivalent document recently issued by a judicial or administrative authority in its country of establishment showing that those requirements are satisfied.
8. The authorising officer responsible may accept as appropriate evidence that a participant or an entity referred to in paragraph 6 is not in one of the exclusion situations referred to in points (a) and (b) of Article 138(1), a recent certificate issued by the competent authority of the country of establishment. Where such types of certificates are not issued in the country of establishment, the participant may provide a sworn statement made before a judicial authority or notary or, failing that, a solemn statement made before an administrative authority or a qualified professional body in its country of establishment.
9. The tenderer to whom the contract is to be awarded shall be exempt from the requirement to submit the documentary evidence referred to in paragraph 6 in case of international organisations acting as tenderer, if the contracting authority can access documentary evidence on a national database free of charge or if such evidence has already been submitted to it for the purposes of another procurement procedure and provided that the issuing date of the documents does not exceed one year and they are still valid. In such cases, the tenderer shall attest on his honour that the supporting documents have already been provided in a previous procurement procedure, which he shall identify, and that no changes in his situation have occurred.

15. SELECTION CRITERIA

1. All tenderers must submit the declaration on the tenderer's honour, duly dated and signed, which is set out in Annex III.
2. Before the award decision, the contracting authority will request documentary evidence on compliance on the selection criteria set out in the present tender specifications from the tenderer to whom the contract is to be awarded.
3. All tenderers are invited to prepare in advance the documents related to the evidence, since they may be requested to provide such evidence within **10 calendar days**. Failure to provide valid documentary evidence within the deadline set by the Contracting Authority shall lead to the rejection of the tender for the award of the contract, unless the tenderer can justify the failure on the grounds of material impossibility.
4. A request for evidence in no ways implies that the tenderer will be awarded the contract.

15.1. Legal and regulatory capacity

The tenderer is required to fulfil at least one of the following conditions:

- (a) be enrolled in a relevant professional or trade register, except for international organisations;
- (b) for service contracts, hold a particular authorisation proving that it is authorised to perform the contract in its country of establishment or be a member of a specific professional organisation.

In the case of groups of economic operators, each member will furnish proof of authorisation to perform the contract.

15.2. Financial and economic capacity

Tenderers shall have sufficient economic and financial resources to enable them to perform the contract in compliance with the contractual provisions, given the value and scope thereof. If, based on the information supplied by the tenderer, the European Parliament has doubts about a tenderer's financial resources, or if these are insufficient for performance of the contract, the tender may be rejected without the tenderer being entitled to claim any financial compensation.

In respect of the contract which is the subject of this invitation to tender, the European Parliament furthermore requires tenderers to have a minimum financial and economic capacity, which will be assessed on the basis of the following information:

- minimum yearly turnover of EUR 175.000, for the last three years for which accounts have been closed.

Financial and economic capacity will be assessed based on the information included in the following documents, to be supplied by tenderers:

- financial data sheet fully completed (Annex VII);
- financial statements (balance sheets, profit and loss accounts and any other related financial information) or their extracts for a period equal or less than the last three years for which accounts have been closed.

If the tenderer is unable to provide the references requested, he may prove his economic and financial capacity by any other document which the European Parliament considers appropriate.

The tenderer may also rely on the capacity of other entities, irrespective of the legal nature of the links between him and those entities. In that case, he must prove to the European Parliament that he will have the resources needed to perform the contract, for instance by providing an assurance of the undertaking by those entities to make them available to him. In that case the European Parliament is entitled to refuse the application or the tender submitted if it has doubts about the undertaking by the third party or about that party's financial capacity. Parliament may require the tenderer and those other entities to be jointly liable for performance of the contract.

On the same basis, a consortium of economic operators may rely on the capacity of members of the group or of other entities.

Tenderers may also rely on the economic capacities of one or more subcontractors in so far as they undertake to take part in the process of performing the contract. In such instances, the European Parliament will assess the capacities of the subcontractor(s) in the light of the extent to which the latter is/are involved in performing the contract.

15.3 Technical and professional capacity

Tenderers must have sufficient technical and professional capacity to enable them to perform the contract in compliance with the contractual provisions, considering its value and scale. If, in the light of the information supplied by the tenderer, the European Parliament has doubts about a tenderer's technical and professional capacity, or if it is clearly insufficient for performance of the contract, the tender may be rejected without the tenderer being able to claim any financial compensation.

In respect of the contract which is the subject of this invitation to tender the European Parliament requires tenderers to have the following technical and professional capacity:

- at least three years' experience in services/deliveries similar to those required by the contract concerned;
- a team of experts in the field of media monitoring, among whom at least the editorial coordinator must have three years' proven experience in the field covered by the invitation to tender; the other members of the team will have at least one year experience. All members of the team are required to be fluent in English and in the language of the media sources monitored;
- technical facilities required to perform the contract: availability of keyword-search electronic program and news database.

Depending on the nature, quantity or scale and purpose of the supplies, services or works to be provided, the technical and professional capacity of economic operators will be substantiated by the following documents:

- List of the principal services provided in the past three years, with the sums, dates and clients, public or private accompanied upon request by statements issued by the clients.
- The professional and/or educational qualifications, including the linguistic skills, of the editorial coordinator and the related staff should be proven by providing CVs with evidence of proficiency in English and in the languages of the monitored sources at a minimum C2 level (Common European Framework of Reference for Languages) and university diploma.

Acceptable forms of evidence for language proficiency may include, but are not limited to:

- Diplomas, degrees, or certificates from recognised language institutions or academic programmes conducted in the relevant language.
- Language proficiency certificates.
- Proof of professional experience or references confirming regular and substantive use of the relevant language(s).

For native speakers, the following may be accepted as sufficient evidence of language proficiency:

- A signed declaration attesting that the person is a native speaker of the language, accompanied by supporting documentation such as evidence of education completed in the relevant language, etc.
- Any appropriate evidence of the existence of the keyword-search electronic program and news database.

The tenderer may also rely on the capacity of other entities, irrespective of the legal nature of the links between himself and those entities. In that case, he must prove to the European Parliament that he will have the resources needed to perform the contract, for instance by providing a commitment by those entities to that effect. In that case the European Parliament is entitled to refuse the application or the tender submitted if it has doubts about the undertaking by the third party or about that party's professional and/or technical capacity.

On the same basis, a consortium of economic operators may rely on the capacity of members of the group or of other entities.

At all events, tenderers may always rely on the technical and professional capacities of one or more subcontractors in so far as they undertake to take part in the process of performing the contract. In such instances, the European Parliament will assess the capacities of the subcontractor(s) in the light of the extent to which the latter is/are involved in performing the contract.

If it establishes that a tenderer faces a conflict of interest which could affect the performance of the contract, the European Parliament may conclude that the tenderer is not of the calibre required to perform the contract.

16. AWARD CRITERIA

The contract will be awarded to the tender offering the best price-quality ratio.

To determine the tender offering the best price quality/ratio, tenders will be evaluated on the basis of the following criteria:

Quality criterion

Qualitative criteria		Maximum points	Threshold
1. Quality and consistency of the proposed simulation	As described in Annex C of the Technical specifications (Annex I) based on the requirements described in the Technical Specifications and its Annexes.	70	35
2. Methodology proposed	The quality and relevance of the methodology proposed for fulfilling the requirements (production steps, search tools, the composition of the team, meeting the delivery deadlines, implementing technical requirements for the full text articles in PDF format, copyright compliance, etc.).	30	15

To be selected for the next price evaluation stage, tenderers will be required to obtain at least 35 points for criterion 1, at least 15 points for criterion 2 and at least 65 points for the two criteria combined.

Price criterion:

The price taken into account for the evaluation (Po) below is the Grand total taken from the second sheet of the Price list in Annex F of the Technical specifications (Annex I).

The evaluation committee will award a maximum of 100 points for the price criterion. The lowest-priced tender will be given the maximum points. The other tenders will be awarded points in proportion to their divergence from the lowest-priced tender. The formula to be used for awarding points under the price criterion will be as follows:

$$(P_m / P_o) * \text{Maximum number of points to be awarded (100)}$$

P_m: price of lowest-priced tender

P_o: price of tender being evaluated

Quality is then linked to price in the following manner:

The number of points obtained for the price criterion is added to the number of points obtained in the evaluation of the qualitative criteria. The tender which obtains the highest number of points will be ranked first.

17. INFORMATION ABOUT TENDERERS

The tenderer (or member of a joint tender) must declare in annex III (Declaration on the tenderer's honour concerning the exclusion and selection criteria) if the entity is a Small and medium-sized enterprise (SME).

According to the Commission's Recommendation 2003/361/EC, Small and Medium-sized Enterprises, are defined as enterprises which:

- employ fewer than 250 persons and
- have an annual turnover not exceeding EUR 50 million or
- an annual balance sheet total not exceeding EUR 43 million.